

because no reply was filed. If counsel for Defendant does not appear today the Court will reduce the attorney hours by an additional hour. Sanctions of \$1,860.00 are awarded (reduced to \$1,460 *only if* Defense counsel does not appear at today's hearing, because the estimated attorney time includes appearance today).

The Motion to Compel Further Responses is moot. The request for sanctions is **GRANTED** in the amount of \$1,860.00. Defendant's proposed order will be modified and executed.

CONE VS. MJB WELDING SUPPLY, INC

CASE NUMBER: 25CV-0208678

Tentative Ruling on Motion to Dismiss Entire PAGA Action: Plaintiff Isaiah Cone moves to dismiss Plaintiff's representative PAGA claims against Defendant MJB Welding Supply, Inc., without prejudice. Plaintiff also moves to dismiss Plaintiff's individual PAGA claims against Defendant with prejudice. Plaintiff has received no consideration for the dismissal of the representative PAGA claims. Potential aggrieved employees have not been notified of this action. The Motion is **GRANTED**. The proposed order will be executed. All future dates, including today's 1:30 p.m. Mandatory Settlement Conference are **VACATED**. The clerk is directed to vacate all future dates and close the file. No appearances are necessary on today's calendar.

HAGE, III, ET AL. VS. MERCED FACULTY ASSOCIATES MEDICAL GROUP, INC., ET AL.

CASE NUMBER: 26CV-0210078

Tentative Ruling on Demurrer: Defendant Novo Nordisk Inc. demurs to the First Cause of Action for Wrongful Death, the Fifth Cause of Action for Products Liability-Failure to Warn, and the Seventh Survival Cause of Action of the Complaint filed by Plaintiffs, George Ruduan Hage III and Victor Trillo. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Demurring or Moving Party Regarding Meet and Confer filed on May 12, 2026, indicates the parties met and conferred by telephone and did not reach an agreement.

Request for Judicial Notice. Defendant has requested the Court take judicial notice of: (1) the FDA-approved prescribing information and medication guide for Wegovy as it existed in July of 2025; (2) the FDA-approved prescribing information and medication guide current as of the date of filing; (3) the USDA website, demonstrating products, approval dates and history, letters, labels and reviews for Wegovy current as of the date of filing; (4) the FDA-approved prescribing information and medication guide for Wegovy, as it existed at the time of original approval on June 4, 2021; and (5) the Complaint in Shasta County case 209540. The request is granted pursuant to Evid. Code §§ 452 and 453.

Defendant further requests the Court take judicial notice of the First Amended Complaint in Shasta County case 209540. The request is denied. The request was made on June 8, 2026, along with the Reply brief. Considering these materials would be prejudicial to Plaintiffs, who did not have the opportunity to oppose.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action” or if the complaint is uncertain. CCP § 430.10(e)-(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Duplicative filings. Novo Nordisk, Inc. demurred to the First, Fifth, and Seventh Causes of Action on the grounds that there is a similar action pending under CCP § 430.10(c). CCP § 430.10(c) provides that a party may demurrer on the grounds that “[t]here is another action pending between the same parties on the same cause of action.” Defendant identifies Shasta County case 209540 as a prior case filed which is substantially similar to the present matter. The complaint in this action adds Plaintiff George Ruduan Hage III and removes Defendant Walgreens Co. Case 209540 was removed to federal court on February 2, 2026, and this court’s jurisdiction was automatically suspended at that time unless and until it was remanded. The case was remanded back to the Superior Court on April 22, 2026. The reply raises that a First Amended Complaint was filed in case 209540 on February 17, 2026, which is identical to the Complaint in the present action. The Court notes the First Amended Complaint was filed while the Superior Court’s jurisdiction was suspended. At this time, the Court declines to rule on this issue and will require the parties to appear and address dismissal of one of the actions.

First Cause of Action. The First Cause of Action for Wrongful Death alleges that Novo Nordisk Inc. breached their duty of care to the decedent by failing to “provide adequate warnings regarding restart protocols and cardiovascular risks” regarding the subject product. Defendant argues that the claim is barred by the learned intermediary doctrine. The learned intermediary doctrine provides that “...in the case of prescription drugs, the duty to warn runs *to the physician*, not to the patient.” *Carlin v. Superior Court* (1996) 13 Cal.4th 1104. Here, the Complaint specifically alleges that Novo Nordisk Inc.’s duty was to the decedent.

In opposition, Plaintiffs contend that the learned intermediary doctrine doesn’t apply when a Plaintiff alleges that the warnings provided to the physicians were insufficient and that adequate warning would have changed the physician’s conduct. In *Amiodarone Cases* (2022) 84 Cal.App.5th 1091, the Court held that “even when a plaintiff alleges that warnings to a physician were inadequate, under California law the learned intermediary doctrine applies, and a manufacturer’s duty is to warn the prescribing physician about dangers associated with the drug.” The First Cause of Action as to Novo Nordisk Inc. is precluded by the learned intermediary doctrine. The Demurrer is **SUSTAINED** without leave to amend as to Defendant Novo Nordisk, Inc. in the First Cause of Action.

Fifth Cause of Action. The Fifth Cause of Action of the Complaint for Products Liability- Failure to against Novo Nordisk, Inc. alleges that Defendant failed to provide adequate warnings to healthcare providers and patients of specified risks associated with the subject product. “The rules of strict liability require a plaintiff to prove only that the defendant did not adequately warn of a

particular risk that was known or knowable in light of the generally recognized and prevailing best scientific and medical knowledge available at the time of manufacture and distribution.” *Anderson v. Owens-Corning Fiberglas Corp.*, supra, 53 Cal.3d 987. “Drug manufacturers need only warn of risks that are *actually known or reasonably scientifically knowable*.” *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The Complaint fails to allege the specified risks were actually known or reasonably scientifically knowable at the time of manufacture and distribution, thus giving rise to a failure to warn.

Additionally, as stated above the duty to warn runs to the physician, not the patient. *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The Fifth Cause of Action alleges that defendant failed to warn healthcare providers and patients. The Demurrer as to the Fifth Cause of Action is **SUSTAINED** with leave to amend regarding Defendant’s duty to warn patients and whether the risks were actually or reasonably known to Novo at the time of manufacture and distribution.

Seventh Cause of Action. The Seventh Cause of Action of the Complaint is a Survival Action. CCP § 377.30 provides that “[a] cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest...and an action may be commenced by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” Here, the First and Fifth Causes of Action are the only causes of action against Novo Nordisk Inc. As stated above, the Demurrer is sustained as to the First and Fifth Causes of Action, therefore the Survival Action cannot endure. The Demurrer as to the Seventh Cause of Action is **SUSTAINED** with leave to amend as to Defendant Novo Nordisk Inc.

In summary, the Demurrer is **SUSTAINED** without leave to amend as to the First Cause of Action; **SUSTAINED** with leave to amend as to the Fifth Cause of Action regarding a duty to warn patients and whether the risks were actually or reasonably known to Novo Nordisk Inc. at the time of manufacture and distribution; and **SUSTAINED** with leave to amend as to the Seventh Cause of Action. Plaintiff shall file an Amended Complaint within 15 days of service of notice of entry of order. Defendant is to prepare an Order consistent with the Court’s ruling. The parties are required to appear on today’s calendar to discuss the present case 210078, Shasta County case 209540, and whether Plaintiff intends to dismiss one of the actions as they appear to be identical.

KAPLANIS VS. SOUTHWICK, ET AL.

CASE NUMBER: 25CV-0208011

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal (“OSC”) issued on May 20, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff Patricia Kaplanis, in pro per, for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. No response to the OSC has been filed. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

NOLIND VS. DAVIE, ET AL.

CASE NUMBER: 25CV-0206940

This matter is on calendar for hearing on Plaintiff’s Motion to Compel Further Responses to discovery. On June 12, 2026, the Court received a Notice of Withdrawal of the Motion to Compel Further Responses to discovery and a Notice of Settlement. The matter is dropped from calendar and no appearances are necessary.